

of new requests or of new facts and evidence (T.1993/07, T.532/08, T.562/09, T.1227/10, T.1354/11).

R.116 EPC (R.71a(2) EPC 1973) and Art. 13(3) RPBA 2007 considerably restricted the scope for admitting in opposition appeal proceedings new requests first filed by the patentee in oral proceedings despite specification of a deadline for filing such requests in the summons notice. Such auxiliary requests could be refused as belated under R.116 EPC, unless they had to be admitted on the grounds that the subject of the proceedings has changed (T.1105/98, T.913/03, T.494/04).

In T.1617/08 the board stated that the purpose of an oral hearing in appeal proceedings is to give the parties an opportunity to argue their case but not to give an appellant (patentee) the opportunity to repeatedly modify its requests until an acceptable set of claims is found. It therefore refused to admit the auxiliary requests filed at the oral proceedings (Art. 13(1) RPBA 2007).

In T.1790/06, in exercising its discretion the board also took account of the conduct of the respondent (patentee) during the oral proceedings. A party's obligations included taking care not to act in a manner detrimental to the efficient conduct of oral proceedings. At such proceedings, it should not for example submit requests willy-nilly, withdraw them and then resubmit them later. That was unacceptable, for both the board and other parties. Similarly, in T.2540/12 the respondent's behaviour impaired the efficient conduct of the oral proceedings and the board stated that this in itself was sufficient reason not to admit the new auxiliary request.

(i) Amended claims not admitted – examples

In T.162/12 the board refused to admit auxiliary request 1 filed at the oral proceedings, on the basis that the discussion during the oral proceedings had been essentially limited to the objection raised in the board's annex to the summons, without any new issues coming up which could have left the appellant facing a new situation. In acting as it did, the appellant had kept all its cards to itself whereas the board with its annex to the summons had laid its cards on the table. That could not be considered conducive to efficient proceedings.

In T.831/92, the board held that, as a matter of principle, it was contrary to procedural fairness to file an auxiliary request during oral proceedings before a board of appeal, because it was difficult for an opponent to deal with a request not submitted in good time before the oral proceedings. In T.667/04 the board stated that no exceptional circumstances had been put forward excusing the late filing of the request. To have admitted it would have run counter to the principle of procedural fairness (see also T.233/05 and T.1333/05).

In T.156/15 the appellant (patent proprietor) had repeatedly adjusted its strategy, in the form of its additional auxiliary requests, to the results of the board's deliberations, which made it difficult for the appellant (opponent) to react. In deciding on the admission of such late-filed requests, respect for the principle of fairness of the procedure might already

dictate that the board should not admit them, even without also considering specific criteria for the exercise of its discretion, such as *prima facie* allowability.

During the oral proceedings in T.14/02, the respondent (patentee) requested the board's leave to file additional requests in order to limit the claimed subject-matter. The board refused the request on two grounds: firstly, the need for a new request had already been apparent before the oral proceedings from the board's preliminary opinion; secondly, the subject-matter of the new requests would have required the other party to perform another search and might have resulted in a remittal.

In T.236/11 the board found the claiming of a combination of features that had not been claimed in the proceedings before that surprising, with the result that neither the board nor the appellant was in a position to deal with the claim without postponing the oral proceedings or remitting the case to the department of first instance.

In T.732/11 (ex parte) the appellant's sole request was filed during the oral proceedings before the board, after the board had given its opinion that the previous request contravened Art. 123(2) EPC. The reasons for that opinion had already been presented to the appellant in the board's communication. The board found that the appellant had delayed filing the request for tactical reasons and that it would have been possible for (and indeed incumbent on) it to have prepared the request in advance of the oral proceedings, rather than obliging the board to interrupt the oral proceedings for this.

In T.656/16, auxiliary requests 8A and 8B were not filed until the oral proceedings before the board. The board refused to admit these two requests, in particular because they were not clearly allowable. The respondent (patent proprietor) then filed another auxiliary request (8C). However, the board considered that the respondent had already had an opportunity on filing auxiliary requests 8A and 8B to overcome the reservations it had expressed before their filing about the then pending requests. The respondent had consciously declined that opportunity, preferring instead to deal with the board's reservations only bit by bit. For reasons of fairness, in particular procedural fairness, and of procedural economy, neither the board nor the other parties to the proceedings could reasonably be expected to accept that. See also T.2046/14.

(ii) Amended claims admitted – examples

In T.1067/03 (inter partes), the board regarded the clarifications in the auxiliary request as a response to the preceding discussion in the oral proceedings. Moreover, the amendment was not so complex that it would have made it impossible to reach a definitive decision in the oral proceedings.

In T.1045/08 the board considered that the auxiliary requests filed in the oral proceedings responded to objections to the earlier filed requests in particular in view of the newly introduced documents. In filing a relevant document shortly before oral proceedings a party must accept that the other party may file appropriate new requests also during the oral proceedings, which may raise issues not previously addressed in the proceedings.

In T.2097/10, the amendment entailed deletion of claim 1 and so eliminated the objections raised. Moreover, the then remaining independent claim, which was already in auxiliary request 1, was *prima facie* allowable. Since the amendment was restricted to deletion of a claim, it would not unnecessarily delay the proceedings.

In T.1589/11 the board raised no objection to the introduction by the opponent of new arguments not contained in the statement of grounds of appeal. That the board found these new arguments convincing only became apparent to the proprietor during the oral proceedings. Under these circumstances the board considered it equitable to allow the proprietor to formulate a response to this finding, especially as the new request could not be seen as adding greatly to the complexity of the case.

In T.2284/12 (ex parte) the board accepted that the auxiliary requests were filed in reaction to detailed comments and objections of the board that were debated in the course of the oral proceedings. The amendments made could be considered as an attempt by the appellant to overcome all pending objections. They did not raise new issues of particular complexity and contributed to the convergence of the debate. See also similar cases T.2485/10, T.391/11, T.1306/11 and T.1995/12.

5.5.3 Late-filed documents and evidence

In T.188/05 the board held that the admission of the appellant's (opponent's) new submission would alter his case in a way that would raise issues which the board and the respondent could not reasonably be expected to deal with without adjournment of the oral proceedings. The material was therefore not admitted to the proceedings pursuant to Art. 10b(3) RPBA 2003.

In T.1774/07 the introduction of the new documents into the proceedings without adjourning oral proceedings would have been contrary to the principle of equal treatment of the parties. The board thus concluded that the documents, independently on their relevance, were not to be introduced into the proceedings (Art. 13(3) RPBA 2007).

In T.232/08 the objection of lack of novelty based on document D11 was raised for the first time during appeal proceedings at the oral proceedings. The board considered that the respondent's right to be heard with regard to the novelty-objection based on document D11 would have been respected only if the oral proceedings had been adjourned or the case had been remitted to the department of first instance. Consequently the board had decided, in application of Art. 13(3) RPBA 2007, not to allow the appellant to present its novelty objection based on document D11. See also the similar case in T.139/12 (new evidence and lines of attack based on it not admitted).

In T.1058/15, the appellant raised a novelty objection based on a new document (D8) filed only a few weeks before the oral proceedings on appeal. Though, the novelty objection based on D8 did not amount to an entirely fresh ground for opposition (G.9/91, OJ 1993, 408), because novelty had already been challenged on the basis of a different document during the opposition proceedings. In the board's view, the circumstances and the interests at stake were nevertheless similar. Since the respondent had not agreed to

the new document's admission, the board decided not to admit it, irrespective of its relevance.

5.5.4 Absence from the oral proceedings – Article 15(3) and (6) RPBA 2007

According to Art. 15(3) and (6) RPBA 2007, the board was not required to delay any step in the proceedings, including its decision, by reason only of the absence at the oral proceedings of any party duly summoned; that party may then be treated as relying only on its written case (Art. 15(3) and (6) RPBA 2020 unchanged, except for an editorial amendment). The board must also ensure that each case is ready for decision at the conclusion of the oral proceedings. The explanatory notes to Art. 15(3) RPBA 2007 (in CA/133/02 dated 12.11.2002) state that this provision does not contradict the principle of the right to be heard pursuant to Art. 113(1) EPC since that Article only affords the opportunity to be heard and, by absenting itself from the oral proceedings, a party gives up that opportunity (explanatory notes quoted in T 1704/06, T 1278/10, T 2281/12, T 133/12, T 1245/14). See also T 1439/16, which referred to these principles in the context of Art. 15(3) RPBA 2020.

a) Absence of applicant (patent proprietor) from oral proceedings

The purpose of oral proceedings is to give parties the opportunity to present their case and to be heard. However, they give up that opportunity if they do not attend the oral proceedings. It is established case law of the boards of appeal that appellants who submit amended claims shortly before the oral proceedings and subsequently do not attend these proceedings must expect a decision based on objections which might arise against such claims in their absence. It is to be expected, for example, that the board will hold the new claims to be unallowable for lack of inventive step (T 602/03, T 991/07, T 1403/07, T 1587/07, T 1867/07, T 546/08, T 680/10, T 795/11).

In T 1634/11 the board stated that an appellant filing amended claims in response to a board's communication had to expect that the admissibility of the newly filed claims would be considered during forthcoming oral proceedings. Since the new sole main request was not admitted into the proceedings and all previous requests had been withdrawn, there were no further requests on file, so that the appeal had to be dismissed. As previously held to the same effect in T 979/02.

A patent proprietor who prior to oral proceedings files amended claims but no description adapted thereto, and who is not represented at the oral proceedings, cannot "rely on" the proceedings being continued in writing or the case being remitted to the department of first instance for adaptation of the description (T 181/02, T 109/02, T 651/08, T 776/05, T 2294/08). Hence, a patent proprietor should make sure, that all the required documents, including a description adapted to the claims, on the basis of which the maintenance of the patent could be ordered are on file, so that a decision can be taken by the board at the end of the oral proceedings if a given request is found allowable (T 986/00, OJ 2003, 554; T 181/02; T 109/02; T 776/05; T 651/08). Amended claims filed without an amended description may lead to revocation (T 1194/08).

In the situation where an appellant submits new claims after oral proceedings have been arranged but does not attend these proceedings, the board can refuse the new claims for substantive reasons, specifically lack of inventive step, even if the claims have not been discussed before and were filed in good time before the oral proceedings (T 1704/06). See also T 1828/10.

In T 1867/07 the board concurred with this view and added that a duly summoned party who by its own volition is absent at oral proceedings cannot be in a more advantageous position than this party would have been, had it been present. See also (T 680/10).

In T 1587/07, it was held that the appellant had had to expect that, in its absence, the board would refuse to admit its new request. The board explained that, given the appellant's absence from the oral proceedings in this ex parte case, it had been unable to discuss with it issues relevant for the purposes of Art. 13 RPBA 2007, such as why features deleted during the proceedings at first instance had been reintroduced at a late stage of the appeal proceedings. Its voluntary absence was not a reason for the board not to raise issues it would have addressed if it had been present (see the similar case in T 1403/07).

In T 1621/09 the board dealt with the following question: Where a new argument is put forward for the first time at oral proceedings, how is the exercise of the board's discretion to admit the amendment affected if the party prejudiced is not present at the oral proceedings? The board stated that Art. 13(2) RPBA 2007 must be read subject to Art. 15(3) RPBA 2007, with the result that the absence of a duly summoned party does not prevent a board from allowing an amendment to another party's case and reaching a decision on the basis of the amended case. The absence of the party is nevertheless a factor to be taken into account in the exercise of the discretion. See also T 607/10.

b) Absence of opponent from oral proceedings

In T 1949/09 the board refused to admit test results filed by the proprietor (appellant) before the oral proceedings. Apart from the unjustified, late filing, the tests raised in the board's view a number of questions about their significance, which could not be answered without an adjournment of the proceedings. Art. 15(3) RPBA 2007 does not go so far as to nullify Art. 113(1) EPC. On that basis, the respondent, who chose not to attend the oral proceedings, could rely on the procedural provisions, namely that the decision would be made on the basis of the written case within the meaning of Art. 12 RPBA 2007 and that no significant amendment of the case would be admitted which would go beyond what is provided by Art. 13 RPBA 2007.

In T 470/04, the appellant patentee filed an amended set of 15 claims during the oral proceedings, which were not attended by the respondent (opponent). Since the amended set of claims was based on a combination of claims already on file, had been filed as a response to objections raised by the board during the oral proceedings, did not modify the main point of discussion defined by the decision under appeal and by the statement of the grounds of appeal, i.e. lack of inventive step, and could be easily dealt with by the board